

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

14. RACHEL GESSNER V. MATTHEW GESSNER

25FL1097

Petitioner filed a Request for Order (RFO) on February 23, 2026, requesting visitation as well as child support orders. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on April 30, 2026, and a review hearing on May 21st. Proof of Service shows Respondent was personally served with all the required documents on April 8, 2026.

Both parties appeared at CCRC on April 30th and reached a full agreement. A report with a copy of the parties agreements was filed with the court on May 8, 2026. Copies were mailed to the parties the same day.

Respondent filed a Responsive Declaration on May 8, 2026. It was served on Petitioner electronically on May 8, 2026. Respondent requests the same orders parties agreed to in CCRC. Additionally, Respondent has proposed a holiday schedule. Respondent also requests Petitioner be imputed with income for 40 hours per week, rather than the 32 hours she is currently working. Respondent requests the court credit any arrears with the minors' private school tuition he currently pays at a rate of \$2,105 per month.

The court has read and considered the filings as outlined above. The court finds the agreements of the parties as set forth in the May 8th CCRC report to be in the best interest of the minors. The court adopts the agreements with the following additions; the court adopts the holiday scheduled as set forth in Respondent's declaration.

As to child support, the court denies Respondent's request to impute Petitioner with income at 40 hours per week. Respondent has not established that Petitioner has the ability or opportunity to work the additional eight hours. Therefore, the court will utilize Petitioner's income at \$65 per hour for 32 hours per week.

Utilizing the figures as set forth in the parties' Income and Expense Declarations, the court finds guideline child support to be \$2,253 payable from Respondent to Petitioner (see attached X-Spouse). The court orders Respondent to pay Petitioner \$2,253 as and for guideline child support effective March 1, 2026, with future payments on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$6,759 for the months of March through May inclusive. The court deducts the amount of school tuition from the

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

arrears leaving a total arrears balance of \$444. Respondent is ordered to pay Petitioner \$444 as and for arrears on or before June 15, 2026.

The court further finds Respondent routinely earns overtime. The court is directing counsel for Respondent to prepare an overtime table based on the court's calculations. Respondent is to true up any overtime earned on a monthly basis, with payment due on the 15th of each month. Respondent is directed to provide Petitioner with his paystubs by no later than the 10th of each month.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the children, childcare costs when such costs are incurred as a result of employment or necessary education for employment, and agreed upon extracurricular activities. The parties are ordered to follow the procedures as set forth in the attached FL-192.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #14: THE COURT FINDS THE AGREEMENTS OF THE PARTIES AS SET FORTH IN THE MAY 8TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINORS. THE COURT ADOPTS THE AGREEMENTS WITH THE FOLLOWING ADDITIONS; THE COURT ADOPTS THE HOLIDAY SCHEDULED AS SET FORTH IN RESPONDENT'S DECLARATION.

AS TO CHILD SUPPORT, THE COURT DENIES RESPONDENT'S REQUEST TO IMPUTE PETITIONER WITH INCOME AT 40 HOURS PER WEEK. RESPONDENT HAS NOT ESTABLISHED THAT PETITIONER HAS THE ABILITY OR OPPORTUNITY TO WORK THE ADDITIONAL EIGHT HOURS. THEREFORE, THE COURT WILL UTILIZE PETITIONER'S INCOME AT \$65 PER HOUR FOR 32 HOURS PER WEEK.

UTILIZING THE FIGURES AS SET FORTH IN THE PARTIES' INCOME AND EXPENSE DECLARATIONS, THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$2,253 PAYABLE FROM RESPONDENT TO PETITIONER (SEE ATTACHED X-SPOUSE). THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$2,253 AS AND FOR GUIDELINE CHILD SUPPORT EFFECTIVE MARCH 1, 2026, WITH FUTURE PAYMENTS ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$6,759 FOR THE MONTHS OF MARCH THROUGH MAY INCLUSIVE. THE COURT DEDUCTS THE AMOUNT OF SCHOOL TUITION FROM THE ARREARS LEAVING A TOTAL ARREARS BALANCE OF \$444. RESPONDENT IS ORDERED TO PAY PETITIONER \$444 AS AND FOR ARREARS ON OR BEFORE JUNE 15, 2026.

THE COURT FURTHER FINDS RESPONDENT ROUTINELY EARNS OVERTIME. THE COURT IS DIRECTING COUNSEL FOR RESPONDENT TO PREPARE AN OVERTIME TABLE BASED ON THE COURT'S CALCULATIONS. RESPONDENT IS TO TRUE UP ANY OVERTIME EARNED ON A MONTHLY BASIS, WITH PAYMENT DUE ON THE 15TH OF EACH MONTH. RESPONDENT IS DIRECTED TO PROVIDE PETITIONER WITH HIS PAYSTUBS BY NO LATER THAN THE 10TH OF EACH MONTH.

IN ADDITION TO THE FOREGOING MONTHLY SUPPORT PAYMENTS, THE PARTIES ARE ORDERED TO EQUALLY SHARE IN ANY UNINSURED MEDICAL CARE COSTS FOR THE CHILDREN, CHILDCARE COSTS WHEN SUCH COSTS ARE INCURRED AS A RESULT OF EMPLOYMENT OR NECESSARY EDUCATION FOR EMPLOYMENT, AND AGREED UPON EXTRACURRICULAR ACTIVITIES. THE PARTIES ARE ORDERED TO FOLLOW THE PROCEDURES AS SET FORTH IN THE ATTACHED FL-192.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

2026 Guideline Summary Monthly Figures

Fixed Shares

	Father	Mother
Number of children	0	2
Percent time with NCP	27.00%	0.00%
Filing status	MFJIN	MFJIN
Number of exemptions	1	3
Wages and salary	14590	9013
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	1167	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	187	0
Other medical expenses	0	0
Property tax expenses	775	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Monthly Figures**2026****Nets (adjusted)**

Father	10353
Mother	6511
Total	16864
Support	
Addons	0
Guideln CS	2253
Alameda SS	0
Total	2253

Cash Flow

Combined net spendable 16864

Father

Payment cost/benefit	-2253
Net spendable income	8100
Federal income tax	1957
Federal employment tax	1116
State income tax	788
State employment tax	190
Total taxes	4050
Federal filing status	MFJIN
State filing status	MFJIN

Mother

Payment cost/benefit	2253
Net spendable income	8764
Federal income tax	1209
Federal employment tax	690
State income tax	487
State employment tax	117
Total taxes	2502
Federal filing status	MFJIN
State filing status	MFJIN

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		27 - 73	0	0	0 Father	2,253 Father	2,253 Father
	0000-00-00	27 - 73	0	0	0 Father	857 Father	857 Father
	0000-00-00	27 - 73	0	0	0 Father	1,396 Father	1,396 Father

Superior Court of California
County of El Dorado

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

15. JUDY MARCUM V. ZACHARY NUGENT

21FL0051

Respondent filed a Request for Order (RFO) on February 20, 2026, seeking a modification of the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on March 23, 2026, and a review hearing on May 21, 2026. Proof of Service shows Petitioner was only served with the FL-300.

Petitioner filed an RFO on March 23, 2026, seeking a modification of the current parenting plan orders. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Only Petitioner appeared at CCRC as such a single parent report was filed on May 7, 2026, with no recommendations. Copies were mailed to the parties on May 8th.

The court drops Respondent's RFO from calendar due to the failure to properly serve Petitioner as well as for Respondent's failure to appear at CCRC which was set at his request.

The court drops Petitioner's RFO from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect.

TENTATIVE RULING #15: THE COURT DROPS RESPONDENT'S RFO FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE PETITIONER AS WELL AS FOR RESPONDENT'S FAILURE TO APPEAR AT CCRC WHICH WAS SET AT HIS REQUEST.

THE COURT DROPS PETITIONER'S RFO FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON